

HOUSE No. 3670

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to dangerous high speed pursuits.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>1/8/2025</i>

HOUSE No. 3670

By Representative Gómez of Easthampton, a petition (accompanied by bill, House, No. 3670) of Homar Gómez relative to dangerous high-speed pursuits. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3281 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to dangerous high speed pursuits.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 90 of the General Laws is hereby amended by inserting after section 25 the
2 following section 25A:-

3 Any person who, while operating or in charge of a motor vehicle, shall refuse to stop
4 when signaled to stop by any police officer who is in uniform or who displays his badge
5 conspicuously on the outside of his outer coat or garment, and who after said refusal operates the
6 motor vehicle negligently or recklessly upon any way or in any place to which the public has a
7 right of access, or any place to which members of the public have access as invitees or licensees,
8 so that the lives or safety of the public might be endangered, and who does so with the intent to
9 evade or elude any police officer or otherwise avoid apprehension, shall be punished by
10 imprisonment in the state prison for not more than five years, or by imprisonment in a jail or

11 house of correction for not more than two and one half years, or by a fine of not more than
12 \$2,500.00, or by both such fine and imprisonment.

13 There shall be an assessment of \$250 against a person who is convicted of, is placed on
14 probation for, or is granted a continuance without a finding for or otherwise pleads guilty to or
15 admits to a finding of sufficient facts of operating a motor vehicle in violation of this section.

16 The amount collected pursuant to this assessment shall be deposited monthly by the court with
17 the state treasurer for who shall deposit it into the Head Injury Treatment Services Trust Fund.

18 The assessment shall not be subject to reduction or waiver by the court for any reason.